

VCU333367 Aranda, Heriberto vs. Farmers Insurance Exchange

County: tulare

Division: Civil Law and Motion

Department: 1

Hearing date: 2026-09-24

Motion: Defendant's Motion to Deem Admissions Admitted

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Re: Aranda, Heriberto vs. Farmers Insurance Exchange

Case No.: VCU333367

Date: September 24, 2026

Time: 8:30 A.M.

Dept. 1-The Honorable David C. Mathias

Motion: Defendant's Motion to Deem Admissions Admitted

Tentative Ruling: To grant the motion and deem Admissions Nos. 1 through 13 admitted; To impose sanctions against Plaintiff and counsel of record, jointly and severally, in the amount of \$650.00 due no later than thirty (30) days from notice of this ruling; Defendant is ordered to provide notice.

Facts

On or about June 9, 2026, Defendant served, by electronic mail, Requests for Admissions, Set One on Plaintiff via counsel. As of the date of the filing of this motion, no response has been received by Defendant. Defendant now seeks to deem Admissions Nos. 1 through 13 admitted.

No opposition appears filed. Defendant has filed a notice of non-opposition to the motion.

Authority and Analysis

Code of Civil Procedure section 2033.280 states that if a party to whom requests for admissions have been directed fails to serve a timely response, the propounding party may move for an order that the truth of any facts specified in the requests for admissions be deemed admitted. Here, Plaintiff has failed to serve a timely response and Defendant has moved for an order to deem the admissions admitted.

Based on the foregoing, the Court grants Defendant's motion. The facts and allegations alleged in Requests for Admissions Nos. 1 through 13 of Defendant's First Set of Requests for Admission shall be deemed admitted.

Sanctions

Under Code of Civil Procedure sections 2033.280(c), Defendant seeks sanctions in the amount of \$797.50, consisting of 2.5 hours at the rate of \$295 per hour plus a sixty dollar filing fee. The Court notes there is no meet and confer requirement and all that is necessary to obtain the relief requested on this motion deem admissions admitted is that the other party failed to respond within the designated time.

The Court will award 2 hours at the rate of \$295 plus the \$60 filing fee and order sanctions imposed against Plaintiff and counsel of record, jointly and severally in the amount of \$650.00 due no later than thirty (30) days from notice of this ruling. Defendant is ordered to provide notice.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.